

Ashley W. Craig
T 202.344.4351
F 202.344.8300
awcraig@venable.com

April 1, 2020

VIA EMAIL (fcarr@fmc.gov)

Florence A. Carr, Director
Bureau of Trade Analysis
Federal Maritime Commission
800 North Capitol Street N.W.
Washington, D.C. 20573-0001

**Re: Vanguard Logistics Services (Japan) Limited (FMC Org. No. 021711) –
Application for Special Permission to Implement COVID-19 Related
Surcharge Pursuant to 46 C.F.R. §520.14**

Dear Director Carr:

On behalf of Vanguard Logistics Services (Japan) Limited (“Vanguard Japan” or the “Company”) (Org. No. 021711) *dba* Vanguard Logistics Services and Vanguard, located at Ask Building, 3rd Floor, 3-12-2 Nihonbashi-Kayabacho, Chuo-Ku, Tokyo, Japan, we submit this letter requesting Special Permission to implement a COVID-19 related surcharge on all inbound shipments from Japan to the United States effective **April 3, 2020 at 12:00 am EDT**.

Section 8(d) of the Shipping Act (the “Act”), 46 U.S.C. 40501(e), authorizes the Federal Maritime Commission (“FMC” or “Commission”), in its discretion and for good cause shown, to permit the issuance of new or initial rates, on less than the statutory notice of 30 days. Pursuant to the Shipping Act and FMC regulation 46 C.F.R. §520.14, we submit this Special Permission application to the Commission’s Bureau of Trade Analysis, along with the required filing fee of USD 313 [Pay.gov confirmation ID: 26OHQINO; Order Number: FIDATQVVWUSRK1819].

A. Reason for Surcharge

[REDACTED]

¹ See Department of Homeland Security, Cybersecurity & Infrastructure Security Agency (“CISA”), *Identifying Critical Infrastructure During COVID-19*, <https://www.cisa.gov/identifying-critical-infrastructure-during-covid-19>.

[REDACTED]

These costs have been incurred for the past few weeks and will be ongoing for the foreseeable future. The Company would like to offset some of these additional costs by implementing the proposed COVID-19 related surcharge as soon as possible.

B. Proposed Surcharge

As a result of the additional costs detailed above, Vanguard Japan requests Special Permission from the Commission to implement a flat **USD 15 COVID-19 related surcharge on all inbound shipments from Japan to the United States effective April 3, 2020 at 12:00 am EDT.**

The surcharge will be set forth in Vanguard Japan's tariff [**Tariff No. 021711-001; Org. No. 021711; Location: www.vanguardlogistics.com**] using the following language:

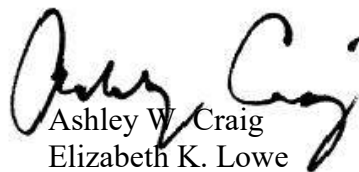
RULE086

For LCL cargo received at all Japan CFS on or after April 3, 2020 to all North America destinations a "Health and Safety Surcharge" of US\$15 per Bill of Lading will apply until further notice.

* * *

We trust that this submission provides the Commission with the necessary information in accordance with the Act and FMC regulations and respectfully request that the Commission expeditiously grant Vanguard Japan's request to implement the COVID-19 related surcharge upon less than the statutory notice period. Should you have any questions, please contact the undersigned at 202-344-4351 or 202-344-4213.

Respectfully submitted,



Ashley W. Craig
Elizabeth K. Lowe

*Counsel to Vanguard Logistics Services
(Japan) Limited*

cc: Vanguard Logistics Services (Japan) Limited